

# Claims Handling Guide

Claim Investigation, Settlement and Escalation Procedures  
Motor Insurance — Distinct Motor Product Line

**Internal use only**

This guide is for use by Aviva Insurance claims handlers and authorised claims partners. It must always be read alongside the current **Distinct Motor policy wording**, the policyholder's **Motor Policy Schedule** (limits, excess bands and endorsement codes), and any **Motor Endorsement Request & Declaration** on file, as these take precedence for the individual case in front of you.

Where this guide and the policy wording appear to conflict, the policy wording controls. Escalate any apparent conflict per Section 7.

|                          |                                                                                                                                   |                     |                                               |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------|---------------------|-----------------------------------------------|
| <b>Document owner</b>    | Head of Motor Claims                                                                                                              | <b>Version</b>      | v2.3                                          |
| <b>Effective date</b>    | 01 September 2026                                                                                                                 | <b>Review cycle</b> | Annual (or on material policy wording change) |
| <b>Applies to</b>        | All motor claims handlers, Tier 1-3                                                                                               | <b>Product line</b> | Distinct Motor                                |
| <b>Related documents</b> | Distinct Motor policy wording; Motor Policy Schedule template; Motor Endorsement Request & Declaration form; Complaints Procedure |                     |                                               |

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# 1. Purpose and Scope

This guide sets out the standard procedure for handling a motor claim under the Distinct Motor policy, from first notification of loss through to settlement, repair release and — where necessary — escalation or dispute. It is designed to let a claims handler confirm coverage quickly and consistently during a live call, without needing to search the full policy wording for routine questions.

It does not replace the policy wording. Any limit, excess, exclusion or defined term quoted to a policyholder must match the wording in force for that policy version and the figures on the individual's Motor Policy Schedule.

## 2. Step-by-Step Claims Processing Guideline

### 2.1 Notification

The policyholder (or a person driving with their consent) must notify Aviva Insurance as soon as possible after any accident, injury, loss or damage — this is a condition of cover under the policy's Claims Procedure and Duty to Prevent Loss or Damage general conditions. Notification is taken by phone on the 24-hour claims line, or via the Motor Endorsement Request & Declaration channel where the notification also affects the policy terms (e.g. a change of use following the incident).

- Confirm the policy number and registration number before taking details.
- Log the incident date/time, location, and a plain-language description.
- Advise the policyholder that they must notify the police as soon as reasonably possible if the car is lost, stolen or broken into.
- Do not admit liability, promise payment, or refuse a claim on the call — these require written consent from the claims division per the General Conditions.

### 2.2 Documentation

Request the full document set for the claim type from Section 4 of this guide. Where the policyholder cannot provide a document immediately, open the claim as pending-documentation rather than declining it outright — see Section 8 for the delay/denial distinction.

### 2.3 Investigation and Evaluation

The assigned handler verifies the submitted documents, reviews the incident against policy cover and any endorsements on the schedule, and — where the claim is accepted in principle — issues an evaluation outcome. See Section 5 for the full investigation procedure and Section 6 for how the settlement value is calculated.

### 2.4 Settlement Offer, Acceptance and Payment

- **If accepted:** issue the settlement offer in writing. Where the claim is for a cash settlement, a signed release/discharge is required before payment is released.
- **Payment method:** settlement is paid by cheque or bank transfer (BACS) to the policyholder's nominated account, consistent with the bank details format used on the Motor Endorsement Request & Declaration form where premium adjustments apply.
- **If not accepted:** the handler must inform the policyholder in writing of the reason for non-acceptance and record the outcome on file before closing the claim.

### 2.5 Repair Release

Where the car is being repaired rather than cash-settled, Aviva Insurance will repair the car unless the policyholder has notified us that they want someone else to repair it (Section 1 — Loss of or damage to your car). Repairs must not proceed without authorisation from the claims division — an unauthorised repair is one of the standard reasons a claim may be delayed (Section 8).

### 3. Types of Motor Claims and Coverage Basis

*Each claim type below is mapped to its governing section of the Distinct Motor policy wording. Quote the limit and excess from the policyholder's current Motor Policy Schedule, not from memory — figures vary by customer (age band, cover tier, NCB and endorsements).*

#### SEC 1 Own Damage / Theft of Parts

Loss of, or damage to, the car (and accessories/spare parts in or on it) from any insured peril. Aviva Insurance will repair, replace, or pay a cash amount equal to the loss or damage, up to the car's **market value** at the time of loss.

- Excludes: wear and tear, mechanical/electrical/electronic failure, tyre damage from braking/punctures/cuts/bursts, theft while ignition keys were left in/on the car or the car was left unattended with the engine running.
- Age-banded excess applies in addition to any other excess (see Appendix A).

#### SEC 2 Third Party Liability (Injury / Property Damage)

Covers amounts the policyholder becomes legally liable to pay following an accident causing another person's death or injury, or damage to their property, up to £20,000,000 for property damage (excluding claimant costs) and £5,000,000 for claimant costs and expenses incurred with our written consent.

- Also covers permitted drivers, passengers, and — for business use — the driver's employer or business partner, subject to the certificate of motor insurance.
- Property damage while carrying high category hazardous goods or at hazardous locations is capped at £1,200,000.

#### SEC 3 Injury to Policyholder or Partner

Pays £30,000 per person (max £60,000 per period of insurance) where accidental bodily injury directly connected with the car is, within 3 months, the sole cause of death, loss of sight, loss of hearing, or loss of a limb. Applies irrespective of fault; excludes suicide or attempted suicide.

#### SEC 4 / 5 Medical Expenses and Physiofast

Medical expenses arising from an accident are covered up to £1,000 per injured person (Section 4). Physiotherapy from an appointed chartered physiotherapist is covered up to £400 per injured person (Section 5). Both apply irrespective of fault.

#### SEC 6 / 7 Personal Belongings and Child Seat Cover

Personal belongings in or on the car are covered up to £2,500 per incident (Section 6) — money, stamps, tickets, documents and trade goods/samples are excluded. Child seats fitted in the car are covered for replacement following an accident, fire or theft, even without apparent damage (Section 7).

- A claim under either section can only be made alongside an accepted Section 1 claim.

#### SEC 12 Glass

Replacement or repair of windscreen, sunroof or window glass, and bodywork scratching caused solely by the broken glass. The policyholder pays the first £100 of a replacement (no excess if the glass is repaired rather than replaced). Does not affect No Claim Discount.

- The handler must confirm the excess figure and windscreen cover status from the policyholder's schedule before quoting — some policies do not include windscreen cover as an upgrade.

#### SEC 13 Pet Cover

Emergency veterinary costs (and, where recommended, euthanasia/cremation/burial) for a pet injured in the car or a towed trailer/horsebox, up to £2,500, for costs incurred within 7 days of the incident. Ongoing treatment, pre-existing conditions, and costs reclaimable under another policy are excluded. Requires an accepted Section 1 claim.

#### SEC 18 / 19 Car Jacking and Road Rage

Up to £5,000 per incident towards medical expenses, trauma counselling or associated expenses where the policyholder is physically assaulted during an aggravated attempted theft (car jacking) or an incident involving the car (road rage).

- Must be reported to the police within 7 days.
- Excluded where the assailant is known to the victim or their immediate family, or (road rage only) where the incident is proven to have been initiated by the policyholder.

#### SEC 24 / 25 Driving Another Vehicle / Motor Legal Protection

Where selected on the schedule, Section 24 extends Section 1-style cover (up to £75,000, £1,000 excess) to another car driven with the owner's permission. Section 25 provides legal protection (up to £100,000 for an unsuccessful claim, £20,000 for defending a motoring offence) — cover requires **reasonable prospects of success** throughout the claim; see Section 7.2 of this guide for how that condition is assessed.

### 4. Required Documentation Checklist

Use this table to confirm what to request at notification stage. "Standard set" items are required for every claim type; only the additional items are listed per row below.

| Claim type                                          | Additional documents required (beyond the standard set)                                                                                                                                                                                                                                                                                                                 |
|-----------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Own damage / theft of parts                         | Police report / notarised affidavit of loss or incident report; official receipt and V5 (certificate of registration); driving licence copy; repair estimate from an accredited repairer; photographs of the damaged area and full vehicle with plate visible.                                                                                                          |
| Injury / death (policyholder, partner or passenger) | Police report / incident report; medical certificates and receipts; photographs supporting the incident; contact details for all parties involved.                                                                                                                                                                                                                      |
| Third party bodily injury / death                   | As above, plus contact name and number of the third party or their authorised representative.                                                                                                                                                                                                                                                                           |
| Third party property damage                         | Police / notarised incident report; official receipt and V5 of the insured car; repair estimate for the third-party property (preferably from an accredited shop); photographs of the damaged property/portion with plate visible where applicable; third-party contact details.                                                                                        |
| Acts of nature (storm, flood, fire)                 | Police report / notarised affidavit; official receipt and V5; driving licence copy; repair estimate from an accredited shop; photographs of damage and full vehicle with plate visible; contact details for unit inspection.                                                                                                                                            |
| Lost or stolen vehicle                              | Original registration and finance documents; statement of outstanding loan balance from the lender if the car is on finance; sales invoice and delivery receipt; full set of keys; vehicle manual and warranty booklet; alarm sheet (original or certified copy). Report to police immediately — theft cover excludes loss where ignition keys were left in/on the car. |
| Claim as third party (against another insurer)      | Police report / incident report / notarised affidavit; official receipt and V5 of the insured car.                                                                                                                                                                                                                                                                      |

#### Standard document set (every claim)

Full payment of premium confirmed (see Section 8 — unpaid premium is a delay reason); completed claim notification; and the policyholder's Motor Policy Schedule reference for the relevant period of insurance.

## 5. Investigation Procedures

### 5.1 Standard verification steps

- Confirm the driver at the time of loss is a permitted driver under the certificate of motor insurance and the schedule's named-driver endorsement (if any).
- Confirm the car's use at the time of loss matches the certificate's limitations as to use (e.g. social/domestic/pleasure and commuting vs. hire or reward).
- Cross-check the incident date against the period of insurance on the schedule.
- Where alloy wheels or upholstery are damaged and matching replacements cannot be sourced, confirm whether the claim qualifies for full matching-set replacement under Section 1.
- For a Section 1 claim above 60% of the car's original list price within 36 months of first purchase (or theft with no recovery), assess against the New Car Replacement criteria — first registered keeper (or second, if pre-registered under 250 miles) and purchased outright or on a qualifying finance agreement.

### 5.2 Fraud indicators and handling

If a claim is in any way dishonest or exaggerated, Aviva Insurance will not pay any benefit or return any premium, may cancel the policy immediately (backdated to the date of the fraudulent claim), and may take legal action. Handlers must escalate a suspected fraud indicator per Section 7 rather than decline the claim unilaterally.

- Inconsistent or changing account of the incident across calls or documents.
- Damage inconsistent with the reported mechanism of loss.
- Repair estimate significantly above market rate for the stated damage.
- Recently increased cover or reduced excess shortly before the loss.
- Documents that appear altered, or which duplicate a document already on file for a different claim.

### 5.3 Uninsured third-party driver claims

Where the policyholder's car is involved in an accident caused by an uninsured driver and the policyholder was not at fault, the excess paid is refunded under the **Uninsured Driver Promise**. The handler must obtain the other vehicle's registration, make/model, and the other driver's details before processing the refund.

## 6. Settlement Procedures

### 6.1 Calculating settlement value

For Section 1 claims, the most Aviva Insurance will pay is the car's **market value** — the cost of replacing it with one of the same make, model, specification and condition — at the time of the loss. Where the car is still being paid for under hire purchase or a leasing agreement, any claim is paid to the owner named in that agreement and our liability ends for that claim.

### 6.2 Applying the excess

The compulsory excess shown on the policyholder's schedule applies to every Section 1 claim regardless of fault, plus any additional age-banded excess for the driver in charge at the time of the accident (Appendix A). Voluntary and compulsory excesses are added together to reach the total payable. Excess does not apply where the policyholder is entitled to a refund under the Uninsured Driver Promise, or to a claim solely for glass repair (as opposed to replacement), vehicle recovery in the event of illness, emergency medical treatment, or replacement locks.

### 6.3 Repair, courtesy car and hire car

Where the car cannot legally be used, a courtesy/hire car is provided for the duration of repair (or up to 21 days, capped at £4,000 including VAT, where the car is stolen and not recovered or is being replaced under New Car Replacement). This benefit only applies within Great Britain, Northern Ireland, the Channel Islands and the Isle of Man — for cover abroad, refer to the Continental breakdown and accident recovery section.

### 6.4 New Car Replacement

If the qualifying criteria in Section 5.1 are met, the car is replaced with a new one of the same make, model and specification (if available in Great Britain, Northern Ireland, the Channel Islands and the Isle of Man). Cars sold as "ex demonstrator" or "nearly new" do not qualify. Where the criteria are not met, or the policyholder does not want a replacement of the same specification, settlement reverts to market value under Section 6.1.

### 6.5 Payment method and No Claim Discount effect

- Settlement is paid by cheque or BACS bank transfer to the policyholder's nominated account — bank details are captured in the same format as the Motor Endorsement Request & Declaration form's BACS section.
- A signed release/discharge of claim document is required before a cash settlement is released.
- An accepted claim will reduce the policyholder's No Claim Discount at next renewal per the current NCD scale, **unless** it falls under the No Blame Discount (claim not the driver's fault, at our discretion) or is solely for: emergency medical treatment / vehicle recovery in illness, glass repair or replacement, or replacement locks following lost/stolen keys.
- If a renewal falls due while a claim is still under investigation, the NCD may be reduced provisionally and restored (with any extra premium refunded) once investigation confirms the other driver was solely at fault.

## 7. Escalation Procedures

### 7.1 Escalation matrix

| Trigger                                                                                                                                | Escalate to                                                     | Target response                    |
|----------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|------------------------------------|
| Suspected fraud indicator (Section 5.2)                                                                                                | Special Investigation Unit (SIU)                                | Within 1 working day               |
| Settlement value disputed by policyholder                                                                                              | Team Leader → Claims Manager                                    | 3 working days                     |
| Reasonable prospects of success in doubt (Motor Legal Protection, Section 25)                                                          | Appointed lawyer review, then Claims Manager if still contested | Per lawyer engagement terms        |
| Claim value exceeds handler's settlement authority                                                                                     | Next authority tier per delegated authority schedule            | 2 working days                     |
| Total loss / New Car Replacement qualification disputed                                                                                | Technical Claims Specialist                                     | 3 working days                     |
| Third-party liability claim above £1,200,000 (hazardous goods/locations cap) or approaching the £5,000,000 / £20,000,000 policy limits | Large & Complex Loss team, immediately                          | Same day                           |
| Policyholder invokes formal complaint                                                                                                  | Complaints team (Section 9)                                     | Acknowledged within 5 working days |
| Coverage question not answered by this guide, the policy wording, or the schedule                                                      | Underwriting Referral                                           | 2 working days                     |

### 7.2 Disputes and arbitration

For Motor Legal Protection claims (Section 25), any difference between Aviva Insurance and the policyholder over acceptance, refusal, control or handling of a claim follows the Complaints Procedure (Section 9) in the first instance. The policyholder also has the right to refer the difference to arbitration, decided by Counsel chosen jointly by both parties — if there is disagreement on Counsel, the President of the relevant national law society will choose a suitably qualified person. The arbitration decision is final and binding; costs of resolving the difference are met by the losing party.

If, during a Motor Legal Protection claim, the appointed lawyer determines reasonable prospects of success no longer exist, this must be confirmed to the policyholder in writing. Costs already agreed or authorised before that point remain payable; costs after the confirmation are not, unless the policyholder continues at their own expense.

### 7.3 Duty of Care / legal costs escalation

Health & Safety at Work-related legal fees and costs (Section 2 — Duty of Care) are capped at £100,000; Corporate Manslaughter and Corporate Homicide Act 2007 costs are unlimited. Any notification under this heading must be escalated to the Large & Complex Loss team immediately, regardless of claim value.

## 8. Reasons Claims May Be Delayed or Denied

Use this list to explain a delay or a decline accurately and consistently. Always confirm the specific policy wording exclusion or general condition that applies before communicating a decline to the policyholder.

| Reason                                                   | What it means for the claim                                                                                                                                                                                                          |
|----------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Unpaid premium</b>                                    | As standard, the claims process commences only once the premium for the period of insurance has been paid. Monthly direct debit policies are invalid if the first premium was never paid.                                            |
| <b>Incomplete documentation</b>                          | All required basic claim documents (Section 4) must be submitted to commence processing; additional documents may be requested if necessary. The claim remains open pending documentation rather than being declined.                |
| <b>Unauthorised repair</b>                               | Repairs must be notified to, and authorised by, the claims division before work begins. An unauthorised repair started before authorisation may not be reimbursed in full.                                                           |
| <b>Fraudulent or exaggerated claim</b>                   | No benefit is paid, premium is not returned, the policy may be cancelled back to the date of the fraudulent claim, and legal action may follow. Escalate per Section 5.2 / 7.1 rather than declining unilaterally.                   |
| <b>Excluded peril or general exclusion</b>               | E.g. wear and tear, mechanical/electrical failure, ignition keys left in/on the car, use outside the certificate's permitted purposes, or an unlicensed/uninsured driver at the time of loss.                                        |
| <b>Incomplete or inaccurate information at inception</b> | If the information the policyholder gave when taking out, amending, or renewing the policy was not complete and accurate, the policy may be cancelled and the claim refused, paid only in part, or paid subject to a revised excess. |

## 9. Complaints Procedure and Financial Ombudsman Service

If a policyholder is unhappy with any aspect of the handling of their claim, the handler should first attempt resolution directly. If the policyholder remains unhappy with the outcome, they may refer the matter to the Financial Ombudsman Service. Handlers must not tell a policyholder that referral to the Ombudsman is confidential from, or guarantees action against, Aviva Insurance — outcomes vary by circumstance.

- Acknowledge the complaint promptly; if not resolved within 24 hours, send a written acknowledgement within 5 working days with the complaints leaflet.
- Financial Ombudsman Service: Exchange Tower, London, E14 9SR. Telephone 0800 023 4567 (free from UK landlines and mobiles) or 0300 123 9123. Email [complaint.info@financial-ombudsman.org.uk](mailto:complaint.info@financial-ombudsman.org.uk).
- Following the complaints procedure does not affect the policyholder's right to take legal action.

### Appendix A — Quick Reference: Cover Limits and Excess Bands

| Cover section                                   | Limit                                                                                                             |
|-------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|
| Section 1 — Own damage/theft                    | Market value of the car at time of loss                                                                           |
| Section 2 — Third party property damage         | £20,000,000 (excl. claimant costs); claimant costs £5,000,000; capped at £1,200,000 for hazardous goods/locations |
| Section 3 — Injury to policyholder/partner      | £30,000 per person; £60,000 per period of insurance                                                               |
| Section 4 — Medical expenses                    | £1,000 per injured person                                                                                         |
| Section 5 — Physiofast                          | £400 per injured person                                                                                           |
| Section 6 — Personal belongings                 | £2,500 per incident                                                                                               |
| Section 12 — Glass                              | £100 excess on replacement; nil on repair                                                                         |
| Section 13 — Pet cover                          | £2,500 per incident (costs within 7 days)                                                                         |
| Section 18 — Car jacking                        | £5,000 per incident                                                                                               |
| Section 19 — Road rage                          | £5,000 per incident                                                                                               |
| Section 21 — Driver injury, alternate transport | £2,000                                                                                                            |
| Section 24 — Driving another vehicle            | £75,000; £1,000 excess                                                                                            |
| Section 25 — Motor legal protection (claim)     | £100,000 if claim unsuccessful                                                                                    |

| Cover section                                 | Limit             |
|-----------------------------------------------|-------------------|
| Section 25 — Motor legal protection (defence) | £20,000 per claim |

| Age of driver in charge at time of accident                | Compulsory excess band                                    |
|------------------------------------------------------------|-----------------------------------------------------------|
| Less than 21 years                                         | Highest band on schedule (typically £350-£450)            |
| Age 21-24                                                  | Mid band on schedule (typically £250-£350)                |
| Over 25, full UK licence held $\geq$ 1 year                | Lowest band on schedule (typically £100-£200)             |
| Over 25, provisional licence or full licence held < 1 year | Mid/upper band — matches the 21-24 band on most schedules |

*Age-banded figures vary by policy — always confirm exact compulsory and voluntary excess amounts on the individual policyholder's Motor Policy Schedule before quoting a total payable.*